

THE LAW
OF
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BY

William Wordsworth

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1916

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PREFATORY NOTE.

THE Copyright Act referred to by Wordsworth in the following document was presented to the House of Commons for the first time on *April 18th, 1838*, the day upon which the poet addressed his open letter to Serjeant Talfourd.

The letter appeared in *The Morning Post* of *April 23rd, 1838*, and had apparently escaped all notice until I chanced upon it recently when searching a file of the paper for any stray writing of Wordsworth's.^[1] Prefixed to the text of the letter was the following editorial comment:—

“We feel very sincere pleasure in having been selected as the medium for giving to the public Mr. Wordsworth’s sentiments concerning Serjeant Talfourd’s proposed Bill for the amendment of the law of copyright. It is a source of additional gratification to us that the opinions of such a man as Mr. Wordsworth are so completely in accordance with those we have already on several occasions endeavoured to impress on the attention of our readers.”

When he applied himself to the composition of the present letter, Wordsworth was for the second time employing his pen in support of Talfourd’s Bill. An earlier letter, dated *April 12th, 1838*, addressed to the Editor of *The Kendal Mercury*, had appeared in the columns of that paper on *April 16th, 1838*, over the pseudonymous initials “A. B.” This earlier letter is already well known, and is included in the *Prose Works of William Wordsworth*, edited by William Knight, 1896, Vol. ii, pp. 375–382. Its successor, now rescued from its obscurity in a dusty file of an old newspaper, should henceforth find a place beside it.

T. J. W.

25, Heath Drive,
Hampstead, N.W.

[1] In view of the number of contributions made by Wordsworth to *The Morning Post* (among which *The Convict*, which brightened its pages on December 14th, 1797, is by far the most important) it is curious to recall the following statement which occurs in a letter addressed by him to Daniel Stuart:—

“I am quite certain that nothing of mine ever appeared in ‘The Morning Post,’ except a very, very few sonnets upon political subjects, and one poem called ‘The Farmer of Tilsbury Vale,’ but whether this appeared in ‘The Morning Post’ or ‘The Courier,’ I do not remember.” [The poem cited did appear in *The Morning Post* on July 21st, 1800.]

THE LAW OF COPYRIGHT.

RYDAL MOUNT,
April 18th, 1838.

MY DEAR SIR,

A strong opposition, which has manifested itself by public meetings and petitions to the House of Commons, having started up among printers, publishers, and others to your Bill for amending the law of copyrights, and no other like counter-movement being made by authors on their part, it has been suggested to me, from quarters entitled to great respect, that it might be of service if, along with a most distinguished literary friend, I should present a petition to Parliament, praying that the Bill may pass, or at least one in favour of its principle. This compliment has no doubt been paid me as one among the oldest of living writers, and one therefore whose heirs must, in course of nature, be injured sooner than those of younger men, if the proposed measure be rejected. You will not be surprised if I feel some scruple in taking a step, though so well recommended, on account of an aversion to appear prominently in any public question, and because I am loth to think so unfavourably of Parliament as to deem that it requires petitions from authors as a ground for granting them a privilege, the justice of which is so obvious. I cannot bring myself to suppose that the mere shadows of argument advanced by printers and publishers against the claims of a class to whom they owe the respectability of their condition, if not their very existence, should avail with any intelligent and disinterested assembly. Yet further am I averse thus to petition Parliament, because I would not ask as an individual suppliant, or with a single associate, what in equity I consider to be the *right* of a class, and for a much longer period

than that defined in your Bill—for ever. Such right, as you have stated in your admirable speech, was acknowledged by the common law of England; and let them who have cried out so loudly against the extension of the term as is now proposed show cause why that original right should not be restored. The onus clearly rests with them to do so; but they have not attempted it, and are glad to take shelter under the statute law as it now stands, which is a composition or compromise between two opinions; the extreme point of one being, that, by giving his thoughts to the world, an author abandons all right to consider the vehicle as private property; and of the other, that he has the right in perpetuity, that descends to his heirs, and is transferable to those to whom he or they may assign it.

This right I hold to be more deeply inherent in that species of property than in any other, though I am aware that many persons, perceiving wherein it differs from acquisitions made in trade and commerce, &c., have contended that the law in respect to literature ought to remain upon the same footing as that which regards the profits of mechanical inventions and chemical discoveries; but that this is an utter fallacy might easily be proved.

From the considerations above stated I decline to petition, as suggested, and content myself, in the silence of others better entitled to speak, with this public declaration of my judgment, so that at least, my dear Sir, you may not be liable to be treated as a volunteer intruding without wish or sanction openly expressed by any one of the class whose rights and interests you have so much to your honour stepped forward to maintain. Here this letter shall close, its purpose being answered, for no general arguments from me, and no statement of facts belonging to my own case, and which have come to my knowledge with respect to my illustrious friends Coleridge, Scott, Southey, and others, would avail to produce conviction where that has not been effected by your unrivalled speech made upon your first introduction of the Bill into the House of Commons, and by reasonings which have lately been set forth with great ability by writers in the public journals, who were more at liberty to enter into details than you could be while treating the subject before Parliament.

Should your Bill be overborne, which I cannot allow myself to fear, by the interested opposition now at work, justice, nevertheless, sooner or later, must triumph; and at all events the respect and gratitude which authors feel

towards you and your coadjutors upon this occasion will be cherished by them to the last hour of their lives.

I have the honour to be,
My dear Sir,
Faithfully yours,
WILLIAM WORDSWORTH.

To
SERJEANT TALFOURD, M.P.

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